

Harishchandra v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 27 May 2025 · 2025:AHC:90331-DB · Writ-C No. 17164 of 2025 · **Writ disposed of; petitioner relegated to Clause 7.10 appeal.**

HEADNOTE

A writ challenging a Superintending Engineer's order and seeking disconnection of third-party loads from the petitioner's LT tube-well connection is not maintainable; the consumer must pursue the alternative remedy of appeal under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Harishchandra filed an Article 226 petition challenging an order dated 17 April 2025 of the Superintending Engineer, Purvanchal Vidyut Vitran Nigam Limited, Hydril Colony, District Fatehpur. He also sought a direction that the electricity connections of respondents 5 and 6 be disconnected from the LT line of his personal cable tube-well connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy — Clause 7.10 appeal; writ not maintainable

HOLDING

The Court held the dispute was not amenable to writ jurisdiction and relegated the petitioner to the alternative remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005, directing him to file an appeal within two weeks, to be decided within eight weeks after opportunity of hearing to the petitioner and other relevant persons. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CHALLENGE TO THE SUPERINTENDING ENGINEER'S ORDER DATED 17 APRIL 2025 AND OF THE PRAYER TO DISCONNECT RESPONDENTS 5 AND 6 FROM THE PETITIONER'S LT TUBE-WELL CONNECTION

Writ held not maintainable; petitioner directed to the Clause 7.10 remedy. ¶ 2